



Home Finders
COASTAL
THE MANDATE COMPANY

The Emporium Shop 5, Cnr Marine Dr and Kings Rd, Shelly Beach

Reg no: 2017/431318/07

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EXCLUSIVE AUTHORITY TO SELL

I / We
..... the
undersigned, being the registered owner/s, or duly authorised representative/s of the owner/s (Seller) of the
Property Erf / Sectional Scheme / Unit no in the
Complex / Estate known as in
..... (Street) in (Township) of
..... (District) together with all fixtures and fittings of a permanent nature
pertaining to the Property, do hereby, irrevocably, grant to Home Finders Coastal an Exclusive Mandate, right and
authority to sell the abovementioned property on the under-mentioned terms and conditions:

1 DOMICILUM CITANDI ET EXECUTANDI

The Party/s hereby agree to accept any notices, including legal notices, in terms of this Agreement at the postal, physical or email addresses set out below. If any party wants to change the address or email where notices will be accepted, that party must notify the other party in writing by prepaid registered post, hand delivery or email. The notice must state the following:

- That you are changing your address or email address where notices will be accepted.
- State that the new address or email where you will accept notices.

Seller

1: Physical address.....

Tel: Email:

Seller

2: Physical address.....

Tel: Email:

Seller

3: Physical address.....

Tel: Email:

Seller

4: Physical address.....

Tel: Email:

2 TERMS AND CONDITIONS OF THE EXCLUSIVE AUTHORITY TO SELL

- 2.1 The gross price for the Property is R.....(.....
.....) or such other price as may be agreed upon by the Seller.
- 2.2 The Exclusive Authority To Sell hereby granted shall commence on signature of this agreement and shall remain in force until
- 2.3 midnight on:...../...../.....("the Exclusive Authority To Sell period")
- 2.4 The Seller shall pay the Exclusive Authority To Sell Agency a Professional Fee of 7.5% per centum, plus VAT (where applicable), of the price at which the Property is sold.

2.5 Said Professional Fee shall be paid:

- 2.5.1 If the Property is sold during the Exclusive Authority To Sell period, whether by Home Finders Coastal, the Seller or any other person or,
- 2.5.2 If the Property is sold by Home Finders Coastal, the Seller or any other person, after the termination of the Exclusive Authority To Sell period to any person who was introduced to the Property during the Exclusive Authority To Sell Period.
- 2.5.3 If the Seller, during the Exclusive Authority To Sell period, refuses to accept an offer equal or higher than the price indicated in clause 2.1 above where the offer is NOT subject to the sale of another Property.
- 2.6 It is hereby agreed that should the seller wish to suspend or withdraw the Exclusive Authority To Sell from the system that the Seller's obligation to Home Finders Coastal shall remain unaltered by virtue of the suspension of the Exclusive Authority To Sell for a period of 12 months from the date of withdrawal.

Signature

2.7 The Seller hereby acknowledges and undertakes the following:

- 2.7.1 Not to grant to any other Property Practitioner nor Agency, during the period of this Exclusive Authority To Sell, the rights granted to Home Finders Coastal in terms of this agreement.

Signature

- 2.7.2 Gives consent to Home Finders Coastal to place a "For Sale" board on the Property and after the sale, for Home Finders Coastal to place a "Sold" board on the Property.
- 2.7.3 That all Tax issues related to the Registered Owner (whether personal or otherwise), including but not limited to tax returns and tax payments are current and up to date.
- 2.7.4 That Home Finders Coastal has explained the meaning and consequences of the material provisions of the Exclusive Authority To Sell.

Signature

- 2.7.5 The seller warrants that the Exclusive Authority To Sell price is sufficient to cover the outstanding bonds / Professional Fee, rates and taxes, electricity and water and other imposts levied by the Local Authority, or Body Corporate.

2.8 Other:

.....
.....

3 SHOW HOUSE SECURITY

Please ensure that all valuables are safely packed / locked away as we cannot be held responsible for any losses due to theft during a Show house.

4 THE HOME FINDERS COASTAL PLEDGE

Granting a Home Finders Coastal Exclusive Authority To Sell, to sell your Property is a major decision and I/we, as your Property Practitioner accept the responsibility to act as your Property Practitioner and pledge that I/we will always act in your best interest by:

- 4.1 Adhering at all times to the Code of Conduct of the Property Practitioners Regulatory Authority.
- 4.2 Timeously advising my colleagues that your Property is on the market, and any changes to the Exclusive Authority To Sell price and other information on your Exclusive Authority To Sell.
- 4.3 Giving you honest and professional advice on all offers that you receive.
- 4.4 Advertising your Property on our internet sites until expiry of the Exclusive Authority To Sell.
- 4.5 Advertising your Property as often as possible within the constraints of my company's policies on advertising.
- 4.6 The Seller/s insists that any potential Purchaser/s viewing the above said Property with the intent to buy the above said Property will be positively identified by the Property Practitioner.
- 4.7 The Seller/s insists that a Buyers questionnaire be completed prior to viewing the above said Property. The Agency will keep all the relevant documents at their offices as per the Acts pertaining to document storage for Real Estate Companies.
- 4.8 The Seller/s insists that all potential Buyers must prove to the Property Practitioner that they have the financial means to buy the above mentioned Property. The Agency will keep all the relevant documents at their offices as per the Acts pertaining to document storage for Real Estate Companies.

5 PROTECTION OF PERSONAL INFORMATION

The Seller/s hereby give their consent to the Estate Agency/ies involved in the Exclusive Authority To Sell to process their personal information for all purposes related to the Exclusive Authority To Sell, in accordance with the provisions of the Protection of Personal Information Act.

This Exclusive Authority To Sell was done and signed by the Seller at

on this day of 20..... at am / pm.

.....
Seller & Co-Seller/s (Registered Owner/s or Duly Authorised Representatives) Witness

.....
Exclusive Authority To Sell Property Practitioner